

Senate File 495

S-3061

1 Amend Senate File 495 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 657.13 Racing facilities and
5 racetracks — immunity.

6 1. A racing facility or racetrack shall not be subject to
7 any action brought by a surrounding property owner under any
8 nuisance, taking, or other theory if the racing facility or
9 racetrack was built before the surrounding real property owner
10 either purchased the real property or built in the area of the
11 racing facility or racetrack.

12 2. This section applies to claims against racing facilities
13 and racetracks located in this state prior to the date the
14 surrounding real property owner bringing the claim acquired or
15 improved the real property.

16 3. For the purposes of this section a "*racing facility*"
17 or "*racetrack*" means a designated area or facility where
18 competitive vehicle and motorsport races are conducted. A
19 "*racing facility*" or "*racetrack*" includes the track, spectator
20 areas, garages, and any associated grounds or buildings used
21 to operate the races.>

22 2. Title page, lines 1 and 2, by striking <sports or
23 exposition venues> and inserting <racing facilities and
24 racetracks>

CHERIELYNN WESTRICH